

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

CHRISTOPHER TURNER,

Plaintiff(s),

-against-

Venue: Based upon Plaintiff's
Residence:

Index No.:

WENDY'S RESTAURANTS OF NEW YORK LLC,
THE CITY OF NEW YORK,
P.O. JOANNA JEANFRANCOIS,
PO BRIANNA MAZZIMAN AND
P.O. FRANCESCA LOVETRO,

Defendant(s).

SUMMONS IN A CIVIL ACTION

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff/Plaintiff's Attorney(s) within twenty (20) days after service of this summons, exclusive of the day of service, where service is made upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, N.Y.
April 4, 2023

Yours etc.,

Law Office of Michael H. Joseph PLLC

BY: 

Michael H. Joseph, Esq.,
203 East Post Road
White Plains, NY 10601
Tel: 914-574-8330
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

CHRISTOPHER TURNER

Plaintiff(s),

Index No.:

-against-

VERIFIED COMPLAINT

WENDY'S RESTAURANTS OF NEW YORK LLC,
THE CITY OF NEW YORK,
P.O. JOANNA JEANFRANCOIS,
PO BRIANNA MAZZIMAN AND
P.O. FRANCESCA LOVETRO

Defendant(s),

_____X

JURY TRIAL DEMANDED

Plaintiff, Christopher Turner by his undersigned attorneys, as for his complaint against
defendants alleges as follows:

COUNT I: FALSE ARREST

1. At all relevant times herein, plaintiff, Christopher Turner, (Hereinafter "Plaintiff") was
and is a resident of the State of New York and County of New York.
2. Upon information and belief, at all relevant times herein, defendant Wendy's Restaurants
of New York LLC, was a foreign limited liability company organized and existing under
and by virtue of the laws of a State other than New York, that was authorized to do
business in the State of New York.
3. At all times relevant herein, the City of New York is and was a municipal corporation
existing under and by virtue of the laws of the State of New York.
4. At all relevant times herein, Defendant P.O. Joanna B. JeanFrancois was and is a resident
of the State of New York and County of Kings.

5. At all relevant times herein, Defendant P.O. Brianna Mazziman was and is a resident of the State of New York and County of Kings.
6. At all relevant times herein, Defendant P.O. Francesca Lovetro was and is a resident of the State of New York and County of Kings.
7. On or about October 15, 2022 and at all times relevant herein, Defendant P.O. Joanna B. JeanFrancois was a duly sworn police officer employed by the City of New York.
8. On or about October 15, 2022 and at all times relevant herein, Defendant P.O. Francesca Lovetro was a duly sworn police officer employed by the City of New York.
9. On or about October 15, 2022 and at all times relevant herein, Defendant P.O. Brianna Mazziman was a duly sworn police officer employed by the City of New York.
10. On or about October 15, 2022 at about 10:00 a.m., and at all times relevant herein, Defendant P.O. Brianna Mazziman, was acting in the course and scope of her employment with the City of New York.
11. On or about October 15, 2022 at about 10:00 a.m., and at all times relevant herein, Defendant P.O. Joanna B. JeanFrancois, was acting in the course and scope of her employment with the City of New York.
12. On or about October 15, 2022 at about 10:00 a.m., and at all times relevant herein, Defendant P.O. Francesca Lovetro, was acting in the course and scope of her employment with the City of New York.
13. On or about October 15, 2022 at about 10:00 a.m., and at all times relevant herein, Defendant P.O. Brianna Mazziman was acting under the color of law.
14. On or about October 15, 2022 at about 10:00 a.m., and at all times relevant herein, Defendant P.O. Joanna B. JeanFrancois, was acting under the color of law.

15. On or about October 15, 2022 at about 10:00 a.m., and at all times relevant herein, Defendant P.O. Francesca Lovetro, was acting under the color of law.
16. On or about October 15, 2022, at about 10:00 a.m., and at all times relevant herein, Wendy's Restaurants of New York LLC owned and operated a fast food restaurant at 9001 Ditmas Ave., Brooklyn, NY 11236, (Hereinafter "the Restaurant").
17. On or about October 15, 2022, at about 10:00 a.m., and at all times relevant herein, all of the workers at the restaurant were employees of Wendy's Restaurants of New York LLC.

**COUNT I: FALSE ARREST AGAINST
WENDY'S RESTAURANTS OF NEW YORK LLC**

18. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length
19. On or about October 15, 2022, at about 10:00 a.m., Plaintiff placed an order for food through the Wendy's App to be picked up at the restaurant.
20. On the aforesaid date, time and place, Plaintiff went to the restaurant to retrieve his food order, which he had paid for in full with his credit card.
21. On or about October 15, 2022, at about 10:00 a.m., and at all times relevant herein, Plaintiff was a patron of the restaurant, had paid for his meal and had a lawful right to be present on the premises, pursuant to the license created by the purchase he had made.
22. On or about October 15, 2022, at about 10:16 a.m., when Plaintiff arrived at the restaurant, his order was not ready.
23. At various points, after waiting for up to half an hour, Plaintiff made various inquiries of the employees at the restaurant about the status of his order.

24. At each point, when Plaintiff made inquires about the status of his food order that he paid for, the employee of Wendy's Restaurants of New York LLC at the counter, was rude, dismissive and hostile.
25. Rather than provide Plaintiff with the food that he had paid for, Wendy's Restaurants of New York LLC, by and through its agents, employees and servants, spitefully cancelled his order, so that Plaintiff would not receive the food that he had already waited half an hour or more for, and said employee called the police.
26. In response to the aforesaid call from an employee of Wendy's Restaurants of New York LLC and the restaurant, police officers Joanna B. JeanFrancois, Brianna Mazziman, and Francesca Lovetro, responded to the restaurant.
27. On or about October 15, 2022, at about 10:56 a.m, at the aforesaid place, Wendy's Restaurants of New York LLC by and through its agents, employees and servants maliciously and with intent to have Plaintiff arrested, falsely represented to P.O. Joanna B. JeanFrancois Brianna Mazziman, and Francesca Lovetro that Plaintiff had trespassed at the restaurant.
28. At the point in time when Defendant Wendy's Restaurants of New York LLC's employee made the aforesaid allegations against Plaintiff, they knew that said allegations were false, that Plaintiff had paid for his meal and had a right to receive same and remain on the premises and consume his food and that there was no probable cause to believe that Plaintiff had trespassed.
29. On or about October 15, 2022 as a direct and proximate result of the foregoing acts and misconduct by an employee of Wendy's Restaurants of New York LLC, plaintiff was

arrested by Joanna B. JeanFrancois Brianna Mazziman, and Francesca Lovetro for the crime(s) of trespass and was deprived of his freedom and falsely imprisoned.

30. Plaintiff was conscious of the aforesaid confinement following his arrest.

31. Plaintiff did not consent to the confinement.

32. The aforesaid arrested of plaintiff was not privileged.

33. At the time of plaintiff's arrest, said defendant Wendy's Restaurants of New York LLC knew there was no lawful basis for the aforesaid arrest of plaintiff.

34. Defendant Wendy's Restaurants of New York LLC, by and through its employee engaged in the knowing fabrication of false allegations, false charges and false evidence, with the intent to inflict emotional harm on plaintiff and other improper purposes, including to punish him for having complained about the Defendant's poor job performance and inability to fulfill his food order within a reasonable time.

35. By and through the knowing provision of false and fabricated information to the aforesaid police officers and the failure to make a full and complete statement of the facts known to them, Defendant Wendy's Restaurants of New York LLC caused and took an active role in the false arrest of the Plaintiff.

36. As a result of the aforesaid, plaintiff was damaged, deprived of his freedom, caused to suffer shock, humiliation, emotional distress, inconvenience embarrassment, and sustained pecuniary and non-pecuniary damages in amounts to be proven at trial.

37. The amounts sought herein, exceed the jurisdictional limits of all courts of inferior jurisdiction.

38. Defendant Wendy's Restaurants of New York LLC is vicariously liable for the acts and omissions of its employee complained of herein.

**SECOND CAUSE OF ACTION: SLANDER AGAINST
WENDY'S RESTAURANTS OF NEW YORK LLC,**

39. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.
40. On or about October 15, 2022, Wendy's Restaurants of New York LLC stated to Joanna B. JeanFrancois Brianna Mazziman, and Francesca Lovetro that Plaintiff "that Plaintiff had trespassed and remained on the premises without authorization."
41. That the above statements accused plaintiff of committing a crime.
42. The statements constitute slander per se.
43. The statements were made by said defendants to initiate the arrest and prosecution of plaintiff.
44. That statements were false.
45. That said defendants acted with a negligent, reckless and/or intentional disregard of the truth when he made the statements.
46. As a result thereof, plaintiff sustained pecuniary and non-pecuniary damages in amount to be determined at trial.
47. Said defendants acted with malice and a wanton, reckless, and/or willful disregard of plaintiff's rights and, as such, plaintiff is entitled to punitive damages in an amount to be proven at trial.
48. Said defendants acted with malice and a wanton, reckless, and/or willful disregard of plaintiff's rights and, as such, plaintiff is entitled to punitive damages in an amount to be proven at trial.

**THIRD CAUSE OF ACTION PRIMA FACIE TORT
AGAINST WENDY'S RESTAURANTS OF NEW YORK LLC**

49. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length
50. Defendants' behavior was shocking and outside the bounds of decency.
51. Defendants' aforesaid conduct was intentionally engaged in with the purpose of inflicting a heavy psychological, physical and financial toll on plaintiff with the goal of
52. No justification or excuse exists for said defendants' conduct.
53. The conduct caused plaintiff pecuniary and non-pecuniary harm.
54. Plaintiff is entitled to an award for his reasonable attorneys fees.
55. Said defendants acted with malice and a wanton, reckless, and/or willful disregard of plaintiff's rights and, as such, plaintiff is entitled to punitive damages in an amount to be proven at trial.

**FOURTH CAUSE OF ACTION AGAINST THE
CITY OF NEW YORK UNDER NEW YORK STATE LAW**

56. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length
57. On or about October 15, 2022 at approximately 10:56 a.m., Plaintiff was lawfully present at the restaurant and was in possession of proof that he was a paying customer, with a right to be present upon the premises.
58. At the aforesaid date, time, and place, Plaintiff had not committed any crime nor was there any reasonable suspicion to believe that Plaintiff had committed a crime.
59. At all times relevant herein, it was readily apparent that Plaintiff had not committed any act of trespass and was entitled to be present at the premises to receive the food that he had paid for and for which he was in possession of proof of purchase.

60. Defendants Joanna B. JeanFrancois Brianna Mazziman, and Francesca Lovetro at all times relevant herein, had actual knowledge that Plaintiff had purchased food from the restaurant and was entitled to be present at said location.
61. At the aforesaid date, time and place, defendants Defendants Joanna B. JeanFrancois Brianna Mazziman, and Francesca Lovetro arrested, confined and caused Plaintiff to deprived of his freedom and liberty, all without a cause, excuse, or justification and without Plaintiff's consent.
62. Defendants Joanna B. JeanFrancois Brianna Mazziman, and Francesca Lovetro actions violated clearly established rights.
63. No reasonable officer in the position of Defendants Joanna B. JeanFrancois Brianna Mazziman, and Francesca Lovetro would have believed the actions of the Defendants herein were objectively reasonable or that it was objectively reasonable to arrest the Plaintiff for insisting on receiving the food that he paid for.
64. As a direct and proximate result of the foregoing acts committed by the Defendants, Plaintiff suffered severe emotional harm, great humiliation, ridicule, mental anguish, depression, mental shock, mental trauma, and pain and was caused to be deprived of his freedom.
65. The Defendants are jointly and severally liable to the harms caused to Plaintiff.
66. The City of New York is vicariously liable for the acts and omissions of Defendants Joanna B. JeanFrancois Brianna Mazziman, and Francesca Lovetro complained of herein.
67. Within ninety days after the occurrence complained of herein, Plaintiff served a verified notice of claim upon the City of New York based on the facts contained herein; more than 30 days have elapsed since the service of such notice and the City of New York has

failed, neglected and refused to make adjustment or payment thereof; and, this action has been commenced within one year and ninety days after the happening of the events upon which these claims are based.

68. A statutory hearing has been held and all prerequisites to suit have been fulfilled.

FIFTH CAUSE OF ACTION: FALSE ARREST UNDER 42 U.S.C. § 1983

69. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.

70. By making the aforesaid arrest of the Plaintiff, without probable cause, justification and privilege, Defendants' actions violated the Plaintiff's civil rights, including but not limited to his rights under the Fourth, Eighth, and Ninth Amendments of the United States Constitution, including but not limited to, the right not to be unreasonably seized and searched, as well as his right to personal liberty.

71. As a direct and proximate result of the foregoing acts committed by the Defendants, Plaintiff suffered severe emotional harm, great humiliation, ridicule, mental anguish, depression, mental shock, mental trauma, and pain and was caused to be deprived of the rights and immunities guaranteed by the United States Constitution, as well as the constitution of the State of New York.

72. Defendants are liable to Plaintiff pursuant to 42 U.S.C. § 1983.

ATTORNEYS FEES AND COSTS UNDER 42 U.S.C. § 1988

73. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.

74. The foregoing events constitute violations of Plaintiff's statutory and constitutional rights, thereby entitling him to attorneys fees, costs and disbursements as permitted by 42 U.S.C. § 1988.

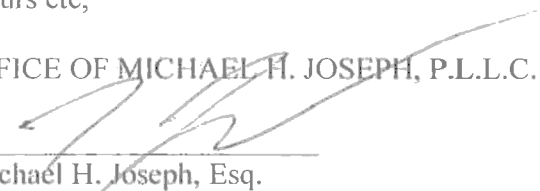
WHEREFORE, Plaintiff demands that judgment be entered for Plaintiff against Defendants in an amount to be determined by the trier of fact for compensatory and punitive damages, plus attorney's fees, interest, costs and disbursements, along with whatever further relief the Court deems just and proper.

Dated: White Plains, New York
April 4, 2023

Yours etc,

LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY:



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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

CHRISTOPHER TURNER,

Plaintiff(s),

Index No.:

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WENDY'S RESTAURANTS OF NEW YORK LLC, THE
CITY OF NEW YORK, P.O. JOANNA JEANFRANCOIS,
PO BRIANNA MAZZIMAN AND P.O. FRANCESCA
LOVETRO,

Defendant(s).

VERIFICATION

I, CHRISTOPHER TURNER the undersigned, am the Plaintiff in the within action: I have read the foregoing VERIFIED COMPLAINT and know the contents thereof; the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matter I believe them to be true.

The grounds of my belief as to all matters not stated upon my own knowledge are the reports, records, memoranda in my file together with my own investigation.

I affirm that the foregoing statements are true, under the penalties of perjury.


CHRISTOPHER TURNER

SWORN TO BEFORE ME
ON THIS 5th DAY OF APRIL, 2023


Notary Public

